

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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MOSES BETHUNE,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER
GONZALEZ, BADGE NUMBER 18642, AND
SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO THE 32ND PRECINCT,

Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates New York
County as the place of trial.

Basis of venue is place
of occurrence.

SUMMONS

Plaintiff resides at
560 Balcom Street, Apt. 5D
Bronx, New York 10465

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
August 30, 2013



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
By: Albert Pizzirusso, Esq.
Attorneys for Plaintiff
MOSES BETHUNE
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER GONZALEZ,
BADGE NUMBER 18642, c/o
32nd Precinct
2207 Amsterdam Avenue
New York, New York 10032

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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MOSES BETHUNE,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER
GONZALEZ, BADGE NUMBER 18642, AND
SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO THE 32ND PRECINCT,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff MOSES BETHUNE by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, respectfully alleges as follows:

1. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled The New York City Police Department, including all the police officers thereof.

3. That at all times hereinafter mentioned Defendant POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, was employed by Defendant CITY OF NEW YORK as a police officer.

4. That at all times hereinafter mentioned Defendant POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, acted within the scope of his employment for Defendant CITY OF NEW YORK.

5. That at all times hereinafter mentioned Defendant POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, was acting under the color and pretense of the statutes, ordinances,

regulations, customs, and usages of the County and City of New York, and under the authority of his office as a police officer for said county and city.

6. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

7. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of tnd precincttheir office as police officers for said county and city.

9. That on or about June 4, 2012, at approximately 9:30 a.m., Plaintiff MOSES BETHUNE exited the place of business located at 2529 Adam Clayton Powell Boulevard in the County, City and State of New York, and discovered that Defendant POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, had issued a parking violation to his motor vehicle.

10. That at the aforementioned time and place, Plaintiff MOSES BETHUNE approached Defendant POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and inquired as to why the parking violation had been issued. Defendant POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, responded in a belligerent and unprofessional manner. When Plaintiff MOSES BETHUNE verbally expressed his displeasure with Defendant's behavior, Defendant POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, without just cause or provocation, responded by drawing his service weapon, pressing it against Plaintiff's forehead, and threatening Plaintiff with bodily harm.

11. Thereafter, Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT

handcuffed Plaintiff MOSES BETHUNE and placed him under arrest despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

12. That Plaintiff was then transported to the 32nd Precinct (2207 Amsterdam Avenue, New York, New York 10032) and thereafter to Manhattan Central Booking for arraignment. Following Plaintiff's arraignment on June 5, 2012, Plaintiff was released on his own recognizance.

13. That on August 21, 2012, within 90 days of the happening of the complained of incident, but more than 30 days prior to the commencement of this action, Plaintiff MOSES BETHUNE duly presented, served, and filed a Notice of Claim, in writing, upon Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

14. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT.

15. That, upon information and belief, a municipal hearing in this matter has been adjourned until Plaintiff's criminal charges have been resolved.

16. This action is commenced within one year and ninety days after the cause of action arose.

AS AND FOR A FIRST CAUSE OF ACTION
FOR ASSAULT

17. Plaintiff MOSES BETHUNE repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

18. The aforementioned acts of Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, placed Plaintiff MOSES BETHUNE in apprehension of imminent harmful and offensive bodily contact.

19. As a result of the conduct of Defendants POLICE OFFICER GONZALEZ, BADGE

NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, Plaintiff MOSES BETHUNE has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A SECOND CAUSE OF ACTION
FOR BATTERY**

20. Plaintiff MOSES BETHUNE repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

21. Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, touched Plaintiff MOSES BETHUNE in a harmful and offensive manner.

22. Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, did so without privilege or consent from Plaintiff MOSES BETHUNE.

23. As a result of the conduct of Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, Plaintiff MOSES BETHUNE has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

24. Plaintiff MOSES BETHUNE repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

25. The level of force employed by Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, was objectively unreasonable and in violation of Plaintiff MOSES BETHUNE's constitutional rights.

26. As a result of the aforementioned conduct of Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, Plaintiff MOSES BETHUNE was subjected to

excessive force and sustained physical injuries.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

27. Plaintiff MOSES BETHUNE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

28. That at the aforementioned time and place, Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, placed Plaintiff MOSES BETHUNE under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

29. That Plaintiff MOSES BETHUNE had not committed any offense and Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

30. That Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT were aware that probable cause did not exist for the arrest and detention of Plaintiff MOSES BETHUNE and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff MOSES BETHUNE and such actions were committed in bad faith.

31. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff MOSES BETHUNE and such actions were committed in bad faith.

32. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff

MOSES BETHUNE was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

33. As a further result of the above-described acts, Plaintiff MOSES BETHUNE was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

34. Plaintiff MOSES BETHUNE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

35. That Plaintiff MOSES BETHUNE was falsely imprisoned from approximately 9:30 a.m. on June 4, 2012, to approximately 6:00 p.m. on June 5, 2012, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

36. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT intended to confine Plaintiff MOSES BETHUNE and Plaintiff MOSES BETHUNE was conscious of the confinement, and Plaintiff MOSES BETHUNE did not consent to the confinement.

37. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff MOSES BETHUNE and

damaging Plaintiff MOSES BETHUNE in his reputation and depriving him of his liberty.

38. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff MOSES BETHUNE suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY**

39. Plaintiff MOSES BETHUNE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

40. Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

41. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

42. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff MOSES BETHUNE.

43. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff MOSES BETHUNE as alleged herein.

44. The foregoing customs, policies, usages, practices, procedures and rules of the City of

New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff MOSES BETHUNE as alleged herein.

45. Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff MOSES BETHUNE's constitutional rights.

46. All of the foregoing acts by defendants deprived Plaintiff MOSES BETHUNE of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. Not to have cruel and unusual punishment imposed upon him;
- E. To receive equal protection under the law.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION**

47. Plaintiff MOSES BETHUNE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

48. That Defendant CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the Defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees; and, in that

Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

49. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A EIGHTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION**

50. Plaintiff MOSES BETHUNE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

51. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff MOSES BETHUNE. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

52. The failure of Defendant CITY OF NEW YORK, to train, supervise, discipline or in any other way control Defendants POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, in the exercise of their employment functions and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff MOSES BETHUNE.

53. As a result of the foregoing, Plaintiff MOSES BETHUNE is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive

damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00)

WHEREFORE Plaintiff MOSES BETHUNE demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER GONZALEZ, BADGE NUMBER 18642, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 32ND PRECINCT, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
August 30, 2013



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
By: Albert Pizzirusso, Esq.
Attorneys for Plaintiff
MOSES BETHUNE
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
August 30, 2013



ALBERT PIZZIRUSSO